

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

CLARENCE ROSS

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
 POLICE DEPARTMENT, P.O. SERGEANT TONY CHACKO,
 IN HIS INDIVIDUAL CAPACITY, P.O. ELVIS CRUZ,
 IN HIS INDIVIDUAL CAPACITY, P.O. MARK BUONO,
 IN HIS INDIVIDUAL CAPACITY, P.O. ANGEL HENRIQUEZ,
 IN HIS INDIVIDUAL CAPACITY, P.O. ERIC DROZ,
 IN HIS INDIVIDUAL CAPACITY, P.O. CRYSTAL WILLIAMS

Defendant,

X

Index No.

ECF

COMPLAINT

**Plaintiff Designates Bronx
 County as the Place of Trial**
 Jury Trial Demanded

Plaintiff, Clarence Ross, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, P.O. Sergeant Tony Chacko, P.O. Elvis Cruz, P.O. Mark Buono, P.O. Angel Henriquez, P.O. Eric Droz and P.O. Crystal Williams all of whom were police officers withing the New York City Police Department on the date the incident complained of herein.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the use of unreasonable and excessive force against Plaintiff on or about November 15, 2018, inside the 44th police precinct while Plaintiff was placed in handcuffs by the Defendants with both hand behind his back and repeatedly beaten throughout his body by the Defendants and thrown to the ground with his face hitting the ground causing severe injuries to the Plaintiff. This action is brought pursuant to 42

U.S Section 1983, to redress Plaintiff's rights under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States.

2. Defendants, police officers Tony Chacko, Elvis Cruz, Mark Buono Angel Henriquez, Eric Droz and Crystal Williams knowingly and willfully with the intent to punish the Plaintiff, engaged in an vicious attacked against Mr. Ross on or about November 15, 2020, while Plaintiff was held in custody at the 44th police precinct in the Bronx, New York.

3. The officers named above are believed to be associated with the 44th police precinct located at 2 East 169th Street, Bronx, New York..

4. The officers named herein engaged in an vicious and unconstitutional attack against the Plaintiff which caused Plaintiff to suffer substantial pain throughout his body.

5. Mr. Ross brings this action pursuant to 42 U.S.C Section 1983, for the violation of his constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. Plaintiff asserts that the New York City Police Department has known about and tolerated a pattern and practice of excessive force by its police officers without fear of reprisals and or discipline by the City of New York.

JURISDICTION AND VENUE

7. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

8. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983.

9. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

10. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

11. Plaintiff, Clarence Ross is a African American male, who at all relevant times was a resident of the State of New York. Mr. Ross is a citizen of the United States.

12. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

13. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendants, police officers Tony Chacko, Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams.

14. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

15. That at all relevant times Defendants were acting under the color of state law.

16. At all times relevant herein the Defendants as police officers of the City of New York were and still remain police officers employed by the New York City Police Department

who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

JURY DEMAND

17. Plaintiff demands trial by jury.

STATEMENT OF FACTS

18. On November 15, 2018, at approximately 4:30pm, Mr. Ross was on walking down the street on 1025 Summit Ave., Bronx, New York when he was accosted by two New York City Police Officers who were driving a police vehicle and got out of their vehicle and stopped the Plaintiff for questioning.

19. Mr. Ross had just been released from police custody for violating an order of protection and was walking towards his home which is located at 1025 Summit Ave. Bronx, New York.

20. The two officers, one male and one female got out of their vehicle and approached the Plaintiff and told the Plaintiff that they just wanted the Plaintiff to get inside their vehicle and that the Sergeant at the 44th police precinct wanted to speak with the Plaintiff.

21. The officers placed Mr. Ross in handcuffs and placed him inside their police vehicle.

22. The officers drove Mr. Ross to the 44th police precinct.

23. Plaintiff recalled seeing the same officers who placed him inside their police vehicle several days earlier from the same precinct.

24. That Mr. Ross repeatedly complained to the officers that the handcuffs were to tight and were hurting him. The Defendant officers refused to remove the handcuffs from around Plaintiff's wrists.

25. Mr. Ross complained to the officers and asked the officers why he had to be taken to the 44th police precinct because Plaintiff had just recently been released from police custody at the precinct.

26. Mr. Ross complained to the officers and “ why yall bothering me , I just came out of central booking and haven’t done anything”.

27. The arresting officers informed Mr. Ross that the Desk Sergeant at the 44th police precinct wanted to see him again.

28. Plaintiff arrived at the 44th police precinct at approximately 5:pm on the evening of November 15, 2028..

29. As Mr. Ross was standing at or near the Desk Sergeant accompanied by the two arresting officers, several other police officers joined the arresting officers and surrounded Mr. Ross.

30. Mr. Ross became to complain about not feeling well and requested the officers to take him to the hospital.

31. As Plaintiff stood in handcuffs inside the 44th precinct he began to inform the officers that he wasn’t feeling well and that he wanted to be taken to a hospital, the Defendant officers and several other police officers at the 44th precinct grabbed the Plaintiff and began to beat the Mr. Ross throughout his body.

32. The Defendant officers took Mr. Ross into a cell, still in handcuffs with his ankles in shackles and continued to repeatedly beat, kick and hit the Plaintiff in his back, neck, wrists and body without justification.

33. The Defendant police officers hit Plaintiff’s head against the jail cell as the officers carried the Plaintiff inside the jail cell.

34. Once inside the jail cell, the Defendant police officers threw the Plaintiff to the ground and continued to beat Mr. Ross repeatedly throughout his head, back, neck, wrists and body.

35. The Defendant officers knocked Mr. Ross's teeth out of his mouth causing Plaintiff tremendous pain and agony.

36. Mr. Ross was bleeding from his face and mouth from the brut forced used by the Defendant police officers.

37. Plaintiff kept asking the officers " why are yall doing this to me? Please help me!"

38. One of the Defendant police officers cursed the Plaintiff and called Mr. Ross " a piece of shit"! , when Plaintiff asked why are yall doing this to me".

39. The Defendant police officers began to laugh at the Plaintiff as he lay on the floor pleading for help.

40. One of the Defendant police officers threatened the Plaintiff by shouting " shut the fuck up bitch, I'm gonna fuck you up , I'm going to choke you."!

41. Mr. Ross, bleeding and screaming in pain yelled out loud " help me my father, help me."!" Take me to another precinct"!

42. Plaintiff required hospitalization from the injuries inflicted upon him by the Defendant police officers.

43. Defendant officers ignored Plaintiff's injuries and request for medical treatment for approximately thirteen (13) hours before calling for medical assistance.

44. Plaintiff remain laying on the ground in handcuffs with blood coming out of his mouth until 8:00 am the next morning November 16, 2018.

45. Plaintiff was forced to urinate on himself as he lay on the floor of the jail cell in handcuffs and hogtied for approximately fourteen (14) hours unable to use the bathroom inside the jail cell because the Defendants left him in handcuffs.

46. An ambulance arrived at the 44th precinct at approximately 8 am November 16, 2018, and took Mr. Ross to Lincoln Hospital in the Bronx, New York.

47. Mr. Ross sustained a broken tooth and significant pain to his wrists, back, neck, and body.

48. Plaintiff suffers from post-traumatic stress disorder caused by the actions of the Defendants on November 15, 2018 as set forth above.

49. Mr. Ross has incurred trouble sleeping and has recurring nightmares of the Defendants beating him over and over without legal justification.

50. Plaintiff suffers from fear of the police and is afraid to venture outside in constant fear of the Defendant and other New York City Police officers.

51. Mr. Ross was hit on his head by the Defendant officers which caused him to be constantly nervous and in constant pain.

52. Plaintiff lost significant weight as a result of the stress inflicted on him by the Defendants. Mr. Ross loss approximately forty (40) pounds from the incident complained of herein.

53. Mr. Ross lost his ability to function as a human being due to the unfathomable actions of the Defendant police officers inside the 44th police precinct.

54. Plaintiff is unable to drive a car or bus and is not capable of cooking his own meals or caring for himself as he had done prior to the beating he sustained on November 15, 2018.

55. Mr. Ross filed a complaint with the New York City Civilian Complaint Review Board (CCRB) regarding the officer's conduct and the injuries he sustained on November 15, 2018.

56. The CCRB informed the Plaintiff of their investigation and substantiated Plaintiff's complaint of force by officer, Eric Droz.

57. That upon information and belief, the incident complained of was recorded on video by one of the cameras installed inside of the 44th police precinct.

58. The Defendants, City of New York and the New York City Police Department have engaged in an systemic and unlawful and abusive pattern and practice of subjecting arrestees of excessive and unreasonable use of force.

59. That the City of New York and the New York City Police Department were previously aware of such constitutional violations and continued to ignore such violations with deliberate indifference to the right of arrestees especially African Americans in police custody.

60. That the City of New York and the New York City Police Department have failed to meaningfully address an organizational culture that tolerates unnecessary and excessive force.

61. That the Defendants remain on the force and have not been sufficiently disciplined for their illegal actions against the Plaintiff.

62. That Plaintiff sustained significant and unwarranted emotional trauma due to the actions by the Defendant correction officers.

63. Mr. Ross was subjected to physical and emotional torture and constant pain and suffering, stemming from the excessive and unreasonable forced inflicted upon him by the Defendant police officers.

64. Mr. Ross has constant pain in his body from the force inflicted upon him by the Defendants as more fully set forth above.

65. Plaintiff is unable to sleep and is forced to recall the vicious and wanton acts committed against him by the Defendant officers.

66. By their conduct described herein, The Defendants Tony Chacko, Elvis Cruz, Mark Buono Angel Henriquez, Eric Droz and Crystal Williams knowingly and willfully, under color of law, deprived Mr. Ross of his constitutional right to be free from excessive and unreasonable force

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, CLARENCE ROSS AGAINST DEFENDANTS TONY CHACKO,
ELVIS CRUZ, MARK BUONO, ANGEL HENRIQUEZ, ERIC DROZ, AND CRYSTAL
WILLIAMS FOR UNREASONABLE USE OF FORCE PURSUANT TO THE FOURTH
AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES AND 42 U.S.C.
SECTION 1983**

67. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 66", with the same force and effect as though more fully set forth at length herein.

68. That at all time herein mentioned Defendants Tony Chacko, Elvis Cruz, Mark Buono Angel Henriquez, Eric Droz and Crystal Williams, by the acts complained of herein and set forth above, engaged in unreasonable force against Mr. Clarence Ross inside the New York City Police Department's 44th police precinct assaulted and battered the Plaintiff on November 15, 2018, which resulted in severe and permanent injuries to the Plaintiff.

69. That the individual Defendants named herein,, were acting in the individual and official capacity and within the scope of their employment as police officers of the New York City Police Department when they brought the Plaintiff to the precinct in handcuffs and proceeded to

punch, kick and beat the Plaintiff repeatedly throughout his body and broke Mr. Ross's tooth in a blatant disregard of Plaintiff's constitutional right to be free from unnecessary force.

70. Mr. Ross was left bleeding inside a jail cell where the Defendants continued their brutal assault on Plaintiff's body.

71. The Defendants caused Mr. Ross to lose a significant amount of blood and a broken tooth.

72. The Defendants acted in substantial abuse of their power as Police Officers of the New York City Police Department who knowingly, and intentionally deprived Mr. Ross of his Constitutional right to be free from the unreasonable use of force.

73. The Defendants acts of violence inflicted upon the Plaintiff were willful , wanton and reckless.

74. That Plaintiff was subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendants, Tony Chacko, Elvis Cruz, Mark Buono Angel Henriquez, Eric Droz and Crystal Williams.

75. That as a direct and proximate result of the unlawful and unreasonable actions of the Defendants' misconduct and abuse of authority described above, Plaintiff Clarence Ross was caused to suffer facial bruises, loss of blood, neck and back pain, a broken tooth and severe mental and emotional stress all caused by the Defendant police officers.

**AS AND FOR A SECOND CAUSE OF ACTION FOR PLAINTIFF CLARENCE ROSS
AGAINST POLICE OFFICERS TONY CHACKO, ELVIS CRUZ, MARK BUONO,
ANGEL HENRIQUEZ, ERIC DROZ, AND CRYSTAL WILLIAMS FOR VIOLATING
PLAINTIFF'S RIGHT UNDER THE SUBSTANTIVE DUE PROCESS CLAUSE OF THE
FOURTEENTH AMENDMENT TO CONSTITUTION OF THE UNITED STATES.**

76. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "75", with the same force and effect, as though more fully set forth at length herein.

77. On the day of Plaintiff's arrest, November 15, 2018, Mr. Ross was a pretrial detainee.

78. Plaintiff had not been convicted of any crime at the time and during the period that he was subjected to the unconscionable abuse of authority and unreasonable infliction of force by Defendants, police officers Tony Chacko, Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams.

79. As a Pretrial detainee, Mr. Ross is afforded constitutional protection against the unreasonable and excessive use of force caused by the individually named Defendants set forth herein which left Plaintiff with a broken tooth, a bloody mouth and pain in his neck, back and body inflicted upon the Plaintiff as punishment in violation of the Substantive Due Process Clause of the Fourteenth Amendment.

80. That the force used by the officers described herein was intended to punish Plaintiff for demanding medical attention in violation of the Substantive Due Process Clause.

81. That the force used by Defendants Tony Chacko, Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams, was not reasonably related to a legitimate governmental objective.

82. Defendants were acting under color of state law when the officers grabbed, punched and kicked the Plaintiff as the Plaintiff's hands were placed behind his back in handcuffs.

83. The Defendant officers took Mr. Ross into a cell, still in handcuffs and continued to repeatedly beat, kick and hit the Plaintiff in his back, neck, wrists and body without justification.

84. The Defendant police officers hit Plaintiff's head against the jail cell as the officers carried the Plaintiff inside the jail cell with the intent to cause Mr. Ross substantial injuries.

85. Once inside the jail cell, the Defendant police officers threw the Plaintiff to the ground and continued to beat Mr. Ross repeatedly throughout his head, back, neck, wrists and body.

86. The Defendant officers knocked Mr. Ross's teeth out of his mouth causing Plaintiff tremendous pain and agony.

87. Mr. Ross was bleeding from his face and mouth from the brut forced used by the Defendant police officers.

88. The Defendants' conduct described above was outrageous, reckless and shocks the conscious of a modern society in violation of the Substantive Due Process Clause.

89. The Defendants, as police officers of the City of New York Police Department acted beyond their authority and willfully, knowingly and intentionally deprived Plaintiff of his constitutional rights secured under 42 U.S.C. Section 1983, and pursuant to the Fourth and Fourteenth Amendment to the Constitution of the United States.

90. As a direct and proximate result of the acts committed by officers Tony Chacko, Elvis Cruz, Mark Buono Angel Henriquez, Eric Droz and Crystal Williams, Plaintiff Clarence Ross suffered severe physical and emotional distress.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF CLARENCE ROSS
AGAINST THE CITY OF NEW YORK FOR FAILURE TO TRAIN, SUPERVISE OR
DISCIPLINE POLICE OFFICERS, TONY CHACKO, ELVIS CRUZ, MARK
BUONO, ANGEL HENRIQUEZ, ERIC DROZ, AND CRYSTAL WILLIAMS
PURSUANT TO 42 U. S. C. SECTION 1983.**

91. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "90", with the same force and effect as though more fully set forth at length herein.

92. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of Plaintiff's constitutional rights.

93. The Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

94. That at all relevant times, the City of New York acting through the Defendant Police officers named herein and the New York City Police Department had de facto policies, practices, customs and usages that directly and proximately caused the violation of Plaintiff's Fourth and Fourteenth Amendment rights as alleged herein.

95. That at all relevant times the City of New York failed to train, supervise or discipline the Defendant police officers Tony Chacko, Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams, thereby directly and proximately causing the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

96. The acts complained of herein were carried out by the Defendants police officers in their official capacity as police officers of the City of New York pursuant to the customs and practices of the City of New York or as a result of the City of New York failure to train, supervise or discipline the Defendant officers.

97. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers engaging in unreasonable use of force .

98. The City of New York failed to adequately train, monitor, supervise or discipline its officers, agents and or servants including the Defendant police officers to respect and comply with the Fourth and Fourteenth Amendments rights of individuals included Plaintiff Clarence Ross .

99. As a direct and proximate result of the City's policies, practices and customs, Mr. Clarence Ross sustained severe physical and emotional damages as set forth herein.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF CLARENCE ROSS
AGAINST ELVIS CRUZ, MARK BUONO, ANGEL HENRIQUEZ, ERIC DROZ, AND
CRYSTAL WILLIAMS FOR FAILURE TO INTERVENE AND DELAY AND DENIAL
OF MEDICAL TREATMENT PURSUANT TO 42 U. S. C. SECTION 1983.**

100. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "99", with the same force and effect as though more fully set forth at length herein.

101. By their conduct and under color of State law, Defendants Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams, acted with malicious and with deliberate indifference in failing to protect Plaintiff from violence while in police custody and in failing to secure the medical attention required for his serious injuries, in a manner that deprived him of his constitutional rights and perpetuated and exacerbated Plaintiff's physical and mental pain and suffering.

102. By their conduct and under color of state law, it is believed the above named Defendants, Elvis Cruz, Mark Buono, Angel Henriquez, Eric Droz, and Crystal Williams, each had opportunities to intercede on behalf of Mr. Ross to prevent the excessive use of force and unreasonable seizure by officer Tony Chacko but due to their intentional conduct or deliberate indifference declined or refused to do so and joined officer Chacko in beating Plaintiff and causing Mr. Ross's injuries.

103. As a direct and proximate result, Mr. Ross suffered the injuries and damages described above.

WHEREFORE , Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated; August 12, 2020
Bronx, New York

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